

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT — LAW DIVISION

JAMES HENDERSON, an individual,
Plaintiff,

v.

SWIFT LOGISTICS LLC, an Illinois limited liability company;
MARCUS WEBB, an individual;
MERIDIAN INSURANCE GROUP, INC., a Delaware corporation;
and DOES 1 through 20, inclusive,

Defendants.

Case No. 2025-L-004812
Hon. Sandra K. Morrow, Presiding
JURY TRIAL DEMANDED

COMPLAINT AT LAW

INTRODUCTION

Plaintiff James Henderson brings this action to recover damages arising from a violent rear-end collision on Interstate 90 in Cook County, Illinois, caused by Defendant Marcus Webb while operating a commercial delivery vehicle in the course and scope of his employment with Defendant Swift Logistics LLC. The collision occurred on March 15, 2025, at approximately 9:17 a.m., near milepost 142.3 on I-90 eastbound. As a direct and proximate result of Defendants' negligence, Plaintiff suffered severe and permanent injuries, including a herniated lumbar disc at L4-L5, cervical whiplash grade III, and a mild traumatic brain injury (mTBI). Defendant Meridian Insurance Group, the commercial automobile insurer for Swift Logistics, subsequently engaged in a pattern of bad-faith claims handling, unreasonably delaying and ultimately denying a meritorious claim without a reasonable basis.

PARTIES

1. Plaintiff James Henderson is a natural person residing in Chicago, Cook County, Illinois (DOB: August 14, 1982). At all times relevant hereto, Plaintiff was lawfully operating his 2022 Toyota Camry (VIN: 4T1C11AK9NU602741) on I-90 eastbound.

2. Defendant Swift Logistics LLC is an Illinois limited liability company with its principal place of business at 4400 West 47th Street, Chicago, IL 60632, engaged in commercial freight and parcel delivery services throughout the greater Chicago metropolitan area. Its registered agent is CSC Global LLC.

3. Defendant **Marcus Webb** is a natural person residing in Cicero, Cook County, Illinois. At all times relevant, Webb was an employee, agent, and servant of Swift Logistics, operating the company's 2021 Ford Transit cargo van (VIN: 1FTBR1C81MKA12890, IL Plate: CF-38291) in the ordinary course of his employment. The company van bore Swift Logistics' DOT number USDOT 3841209.

4. Defendant **Meridian Insurance Group, Inc.** is a Delaware corporation duly authorized to issue commercial automobile insurance policies in Illinois. Meridian issued Commercial Auto Policy No. CAP-IL-0072441 to Swift Logistics LLC, with a policy period of January 1, 2025 to December 31, 2025, providing combined single-limit liability coverage of \$5,000,000 per occurrence. Meridian's Illinois claims processing office is located at 333 South Wacker Drive, Suite 2800, Chicago, IL 60606.

JURISDICTION AND VENUE

5. This Court has jurisdiction pursuant to 735 ILCS 5/2-209. Venue is proper in Cook County under 735 ILCS 5/2-101 because the accident occurred in Cook County, Plaintiff resides in Cook County, and Defendants regularly transact business in Cook County.

FACTUAL ALLEGATIONS

6. On the morning of March 15, 2025, Plaintiff James Henderson was driving his 2022 Toyota Camry eastbound on I-90, in the center lane, at a speed of approximately 60 miles per hour — consistent with the posted speed limit — near milepost 142.3 in the city of Chicago.

7. At approximately 9:17 a.m., Defendant Webb, while operating the Swift Logistics delivery van, failed to observe slowing traffic ahead and struck the rear of Plaintiff's vehicle at an estimated impact speed of 45 miles per hour. The force of the collision pushed Plaintiff's vehicle approximately 38 feet forward and caused it to spin 90 degrees into the right shoulder.

8. Cook County Sheriff's Deputy Terrence L. Okafor (Badge No. 7342) responded to the scene, prepared Incident Report No. CCSO-2025-0315-4471, and issued Defendant Webb a citation for Failure to Reduce Speed to Avoid an Accident (625 ILCS 5/11-601(a)). Deputy Okafor noted in his report that Webb 'admitted he was glancing at his route navigation tablet at the time of impact.'

9. Plaintiff was transported by Chicago Fire Department Ambulance No. 31 to Rush University Medical Center, 1620 West Harrison Street, Chicago, IL 60612, where he was treated in the emergency department for acute cervical and lumbar pain, dizziness, and confusion. Diagnostic imaging (CT head, MRI cervical and lumbar spine) confirmed a herniated disc at L4-L5 with left-sided radiculopathy, grade III cervical strain, and a mild traumatic brain injury. ER Attending Dr. Yolanda Park admitted Plaintiff for a two-night inpatient observation.

10. Plaintiff underwent six weeks of inpatient physical rehabilitation at the Shirley Ryan AbilityLab (formerly RIC), Chicago, Illinois. He was subsequently referred to Dr. Kevin Shaughnessy, orthopedic spine surgery, for evaluation of surgical intervention for the L4-L5 herniation. As of the date of this Complaint, Plaintiff continues to experience chronic lower back pain, left-leg radiculopathy, and persistent post-concussive symptoms, including headache, memory difficulty, and photosensitivity.

11. Plaintiff's total documented medical expenses through April 1, 2025, amount to **\$87,534.62**. His treating physicians estimate future medical costs (including a likely discectomy and ongoing pain management) of not less than **\$200,000**. Plaintiff, a licensed civil engineer employed by Harmon & Peck

Engineering Associates, has been unable to return to work since the date of the accident, resulting in documented lost wages of **\$180,000** through filing date.

12. On March 20, 2025, Plaintiff's counsel submitted a formal demand letter and claims package to Meridian Insurance Group. Meridian acknowledged receipt on March 24, 2025, but failed to conduct any meaningful investigation. On April 14, 2025, Meridian issued a letter purporting to deny the claim in its entirety on the grounds that Webb's 'navigation device use does not constitute distracted driving under applicable Illinois law' — a position contradicted by settled Illinois appellate authority and the plain language of 625 ILCS 5/12-610.2.

COUNT I — NEGLIGENCE (Against Webb)

13. Plaintiff incorporates by reference all preceding paragraphs.

14. Defendant Webb owed a duty to exercise reasonable care in the operation of the Swift Logistics vehicle.

15. Webb breached that duty by: (a) failing to keep a proper lookout; (b) operating a commercial vehicle while distracted by a navigation tablet; (c) failing to reduce speed to avoid a foreseeable collision; and (d) following too closely in violation of 625 ILCS 5/11-710.

16. As a direct and proximate result of Webb's negligence, Plaintiff suffered damages in excess of \$2,267,534.62.

COUNT II — RESPONDEAT SUPERIOR (Against Swift Logistics)

17. Plaintiff incorporates by reference all preceding paragraphs.

18. At the time of the collision, Webb was acting within the course and scope of his employment with Swift Logistics, operating a company-owned vehicle on a company-assigned delivery route.

19. Swift Logistics is vicariously liable for all of Webb's negligent acts.

COUNT III — NEGLIGENT ENTRUSTMENT (Against Swift Logistics)

20. Plaintiff incorporates by reference all preceding paragraphs.

21. Swift Logistics knew, or in the exercise of reasonable care should have known, that Webb had received two prior moving violation citations within the preceding 24 months and had been involved in one prior at-fault collision while operating a company vehicle. Defendant nonetheless entrusted Webb with a commercial vehicle without imposing restrictions on in-cab device use or conducting a required MVR check required by FMCSA regulations (49 C.F.R. § 391.25).

COUNT IV — INSURANCE BAD FAITH (Against Meridian)

22. Plaintiff incorporates by reference all preceding paragraphs.

23. Meridian owed a duty under 215 ILCS 5/155 to handle Plaintiff's claim in good faith and in accordance with Illinois law.

24. Meridian breached that duty by: (a) failing to conduct a reasonable investigation; (b) unreasonably denying a claim supported by police findings, medical documentation, and eyewitness accounts; (c) misrepresenting Illinois law in its denial letter; and (d) using the denial as a delay tactic to reduce the present value of Plaintiff's claim.

25. Plaintiff is entitled to statutory attorney fees, punitive damages of not less than **\$182,500**, and costs pursuant to 215 ILCS 5/155.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff James Henderson respectfully requests judgment against Defendants, jointly and severally, as follows:

- (a) Compensatory damages of **\$2,267,534.62** (past medical \$87,534.62 + future medical \$200,000 + lost wages \$180,000 + pain & suffering \$1,800,000);
- (b) Punitive damages of **\$182,500** against Meridian under 215 ILCS 5/155;
- (c) Statutory attorney fees and costs;
- (d) Pre- and post-judgment interest;
- (e) Such other and further relief as the Court deems just and proper.

TOTAL DAMAGES SOUGHT: \$2,450,034.62

Respectfully submitted,

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